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Saleba v. Harvest Film Productions, LLC

Below, the Court posts tentative rulings on Saleba's Motion for Summary Adjudication, and Kampf's Demurrer.

1. TENTATIVE RULING - SALEBA'S MOTION FOR SUMMARY ADJUDICATION

Plaintiff's motion for summary adjudication is DENIED as to both the first cause of action (breach of contract) and the second cause of action (money lent).

Plaintiff has not carried his initial burden of establishing each element of either cause of action with admissible evidence.

ANALYSIS

Introduction

On May 20, 2025, Plaintiff filed the Complaint in this action.

On March 3, 2026, Plaintiff filed the operative First Amended Complaint.

On May 19, 2026, Plaintiff Paul A. Saleba filed a Motion for Summary Adjudication of the First and Second Causes of Action of Plaintiff's First Amended Complaint against Defendant Harvest Film Productions, LLC.

No opposition has been filed.

Request for Judicial Notice

Plaintiff requests judicial notice of (1) the July 10, 2025 Declaration of Paul Kampf filed in support of a writ-of-attachment application; (2) the original Complaint filed May 20, 2025; and (3) the FAC filed March 3, 2026.

The request is granted.

MOTION FOR SUMMARY ADJUDICATION

Plaintiff moves for summary adjudication of the First and Second Causes of Action of the First Amended Complaint, on the grounds that there is no triable issue of material fact as to either claim.

Legal Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843). In analyzing such motions, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue."

(Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294). Thus, summary judgment or summary adjudication is granted when, after the Court's consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist and the moving party is entitled to judgment as a matter of law. (CCP § 437c(c); Villa v. McFarren (1995) 35 Cal.App.4th 733, 741).

As to each claim as framed by the complaint, the party moving for summary judgment or summary adjudication must satisfy the initial burden of proof by presenting facts to negate an essential element. (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520). Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389). A motion for summary judgment or summary adjudication must be denied where the moving party's evidence does not prove all material facts, even in the absence of any opposition or where the opposition is weak. (See Leyva v. Superior Court (1985) 164 Cal.App.3d 462, 475; Salesguevara v. Wyeth Labs., Inc. (1990) 222 Cal.App.3d 379, 384, 387.)

Once the moving party has met the burden, the burden shifts to the opposing party to show via specific facts that a triable issue of material facts exists as to a cause of action or a defense thereto. (CCP § 437c(o)(2)). When a party cannot establish an essential element or defense, a court must grant a motion for summary adjudication. (CCP § 437c(o)(1)-(2)).

A moving plaintiff meets his or her burden of showing that there is no defense to a cause of action "if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (CCP § 437c(p)(1).)

First Cause of Action: Breach of Contract

To prevail on a breach of contract claim, Plaintiff must establish (1) the existence of a contract, (2) Plaintiff's performance or excuse for nonperformance, (3) Defendant's breach, and (4) resulting damages. (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

Plaintiff has not established each element with undisputed, admissible evidence.

Here, Plaintiff provides the following evidence in support of the motion. Plaintiff submits the Demand Promissory Note dated April 10, 2024, which identifies Harvest as Borrower and Plaintiff as Lender and recites a principal sum of \$400,000. (RJN, Exh. 1, Exh. C.) Plaintiff submits the sworn Declaration of Paul Kampf, Harvest's sole managing member, who states that he entered into the Note with Plaintiff on April 10, 2024, and accepted the \$400,000 loan. (RJN, Exh. 1, ¶ 8.) Plaintiff submits the same declaration for Kampf's further statement that he allocated the loan proceeds to the film's budget. (RJN, Exh. 1, ¶ 9.) Plaintiff submits Harvest's verified discovery responses admitting that its sole manager and member is Paul Kampf. (IOE, Exh. 2, SROG No. 1; IOE, Exh. 3, RFA No. 25.) Plaintiff submits the March 25, 2025 written demand for repayment, authenticated by his own declaration. (IOE, Exh. 4; Decl. of Paul A. Saleba, ¶ 2.) Plaintiff submits Harvest's verified admission that Plaintiff sought payment. (IOE, Exh. 3, RFA No. 13.) For the fact that Harvest failed to repay, Plaintiff cites his own Complaint and First Amended Complaint. (Sep. Stmt., Fact No. 6, citing RJN, Exhs. 2 & 3.)

Plaintiff establishes several, but not all, of the required elements. As to the existence of the contract, the Note identifies the parties and their obligations, and Harvest's managing member admits under oath that he entered into it on April 10, 2024. (RJN, Exh. 1, ¶ 8.) Because that admission is the sworn statement of Harvest's sole managing member, it is admissible against Harvest as an admission of a party opponent. (Evid. Code, § 1220.) The existence of the contract is established.

As to Plaintiff's performance, a moving plaintiff on a promissory note must show that the funds were advanced. Kampf's declaration supplies that proof. He states that he "accepted the \$400,000 loan" and that he "allocated the funds accordingly to the film's budget." (RJN, Exh. 1, ¶¶ 8–9.) Again, these are party admissions that may be considered for their truth against Harvest. Harvest, the named Borrower, admits that it received the \$400,000 loan under the Note. Performance is established.

As to demand, the Note provides that the balance becomes due within thirty days after written notice from the Lender. The March 25, 2025 demand letter, authenticated by Plaintiff, and Harvest's admission that Plaintiff sought payment, establish that a written demand was made and that the thirty-day period elapsed before this action was filed on May 20, 2025. (IOE, Exh. 4; Decl. of Paul A. Saleba, ¶ 2; IOE, Exh. 3, RFA No. 13.)

As to breach, however, Plaintiff's showing fails. Breach of a demand note requires proof that the borrower did not repay after demand. The only evidentiary citation Plaintiff offers for the fact that Harvest "failed to repay the PROMISSORY NOTE" is his own Complaint and First Amended Complaint. (Sep. Stmt., Fact No. 6, citing RJN, Exhs. 2 & 3.) Judicial notice of those pleadings establishes that they were filed; it does not establish the truth of the allegations within them. (*Day v. Sharp* (1975) 50 Cal.App.3d 904, 914.) A plaintiff may not prove an element of his own claim by pointing to the allegations of his own pleadings. Plaintiff's supporting declaration does not fill the gap. Rather, it authenticates the demand letter and is silent as to whether any portion of the loan was ever repaid. (Saleba Decl., ¶ 2.) The only item of evidence in the record that addresses repayment at all is Harvest's verified response denying that it failed to repay. (IOE, Exh. 3, RFA No. 14.) On this record, nonpayment is not established by admissible evidence.

As to damages, the fact and amount of any unpaid balance depend on the same proof of nonpayment that Plaintiff has not supplied. Damages are therefore likewise unestablished.

Plaintiff's evidence supports the existence of the Note, his performance, and a written demand, but does not support that Harvest failed to repay. Nonpayment is an essential element of the breach of contract cause of action. Because Plaintiff has not proved every element, the burden of proof does not shift to Defendant, and the motion must be denied even in the absence of opposition. (Scalf, *supra*, 128 Cal.App.4th at p. 1520; Code Civ. Proc., § 437c, subd. (p)(1); Leyva, *supra*, 164 Cal.App.3d at p. 475.)

Summary adjudication of the First Cause of Action is DENIED.

Second Cause of Action: Money Lent

The common count for money lent requires (1) a statement of indebtedness in a certain sum, (2) consideration (i.e., money lent), and (3) nonpayment. (*Farmers Ins. Exchange v. Zerin* (1997) 53 Cal.App.4th 445, 460.) The claim lies where one person has received money belonging to another that in equity and good conscience should be repaid. (*Rubinstein v. Fakheri* (2020) 49 Cal.App.5th 797, 809.)

The indebtedness and consideration elements are supported. Kampf's admission that Harvest accepted the \$400,000 loan and allocated the proceeds to the film establishes that money was lent to and received by Harvest in a sum certain. (RJN, Exh. 1, ¶¶ 8-9; Evid. Code, § 1220.) The money lent count, however, requires proof of nonpayment just as the contract count does. Plaintiff supports that element solely with his own Complaint and First Amended Complaint (RJN, Exhs. 2 & 3), which cannot establish the truth of the fact, and his declaration is silent on the point. For the reasons stated above, nonpayment is not established by admissible evidence.

Because Plaintiff has not established nonpayment, the burden does not shift to Defendant, and the motion must be denied notwithstanding the absence of opposition.

Summary adjudication of the Second Cause of Action is DENIED.

Prejudgment Interest

Because the Court denies adjudication of liability on both causes of action, the request to adjudicate entitlement to prejudgment interest is moot.

Conclusion

Plaintiff's Motion for Summary Adjudication is DENIED as to the first and second causes of action.

Moving Party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.

2. TENTATIVE RULING - REGARDING DEMURRER BY KAMPF

The Court does not reach the merits of the demurrer or motion to strike, and both are placed OFF CALENDAR as improperly filed.

However, mindful that Kampf is self-represented and construing his filing according to its substance rather than its form, the Court interprets the filing as reflecting an intent to seek relief from the default. The Court grants Kampf leave to file a noticed motion to set aside the default under Code of Civil Procedure section 473(b) within 30 days of this ruling, setting forth the grounds for relief. If Kampf intends to demur, he must file his proposed demurrer or other responsive pleading concurrently with the section 473(b) motion, as that statute requires.

ANALYSIS

Introduction

On May 20, 2025, Plaintiff filed the Complaint in this action.

On March 3, 2026, Plaintiff filed the operative First Amended Complaint.

Default was entered against Kampf on April 15, 2026.

On May 7, 2026, Defendant Kampf thereafter filed his demurrer, motion to strike, opposition to entry of default, and motion for sanctions.

Meet and Confer

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (CCP §§ 430.41)

The Declaration of Bryan Goh, executed on October 13, 2025, sets forth the meet and confer efforts of counsel for the Defendant, and counsel's attempts to resolve the discovery dispute informally by telephone. The declaration satisfies the requirement of Code of Civil Procedure section 430.41.

Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-21.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not on the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Id.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

Discussion

As a defendant in default, Kampf currently lacks standing to demur, to move to strike, or otherwise to litigate the sufficiency of the FAC. Plaintiff is correct on this point, and the Court accordingly does not reach the substantive arguments raised in the demurrer.

The court notes that the Defendant Kampf is self-represented. The court reminds Defendant that "[M]ere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation. (See Lawrence v. Superior Court (1988) 206 Cal.App.3d 611, 619, fn. 4, 253 Cal.Rptr. 748.) . . . A doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation." (Rappleyea v. Campbell (1994) 8 Cal.4th 975, 984–985.) That being said, the Court of Appeals

has also ruled that "[t]rial judges must acknowledge that pro per litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements. . . . The judge should monitor to ensure the pro per is not inadvertently misled, either by the represented party or by the court." (Gamet v. Blanchard (2001) 91 Cal.App.4th 1276, 1284.) Also, "when a pro per is involved, special care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system." (Ibid.)

Reconciling these principles here, the Court holds Kampf to the same substantive rules that govern any defendant in default — he may not litigate the sufficiency of the FAC while the default stands. However, the Court construes the substance of Kampf's filings as an attempt to contest the default and defend the action. The correct vehicle is a noticed motion for relief under Code of Civil Procedure section 473(b).

Conclusion

Accordingly, the Court does not reach the merits of the demurrer or motion to strike. Both are placed off calendar as improperly filed, without prejudice.

Kampf is granted leave to file a section 473(b) motion within 30 days of this ruling. Any such motion must be supported by a declaration setting forth the grounds for relief and must be accompanied by his proposed responsive pleading, including any demurrer. Section 473(b) requires that the application "be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted." A demurrer filed without a concurrent, timely section 473(b) motion will again be placed off calendar.

Plaintiff to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.